



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-23-183 / The Bluffs, 12th Filing / Final Plat
Date: January 22, 2024

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 01/22/2024
- Public Services Committee 02/06/2024
- Final consideration 02/12/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their January 2, 2024 meeting and unanimously voted to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE BLUFFS, 12TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF CONVERSE AVENUE AND SOUTH OF STOREY BOULEVARD)."

WHEREAS, Horizon Development, LLC has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Horizon Development, LLC the owner of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the subdivision described as The Bluffs, 12th Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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CITY OF CHEYENNE PLANNING COMMISSION

JANUARY 2, 2024

STAFF REPORT

FILE: PUDC-23-183: The Bluffs, 12th Filing (Expedited Review)

REQUEST: Plat a portion of land in the NW Corner of Section 21, T.14N., R.66W., of the 6th P.M.

LOCATION: East of Converse Avenue and south of Storey Blvd.

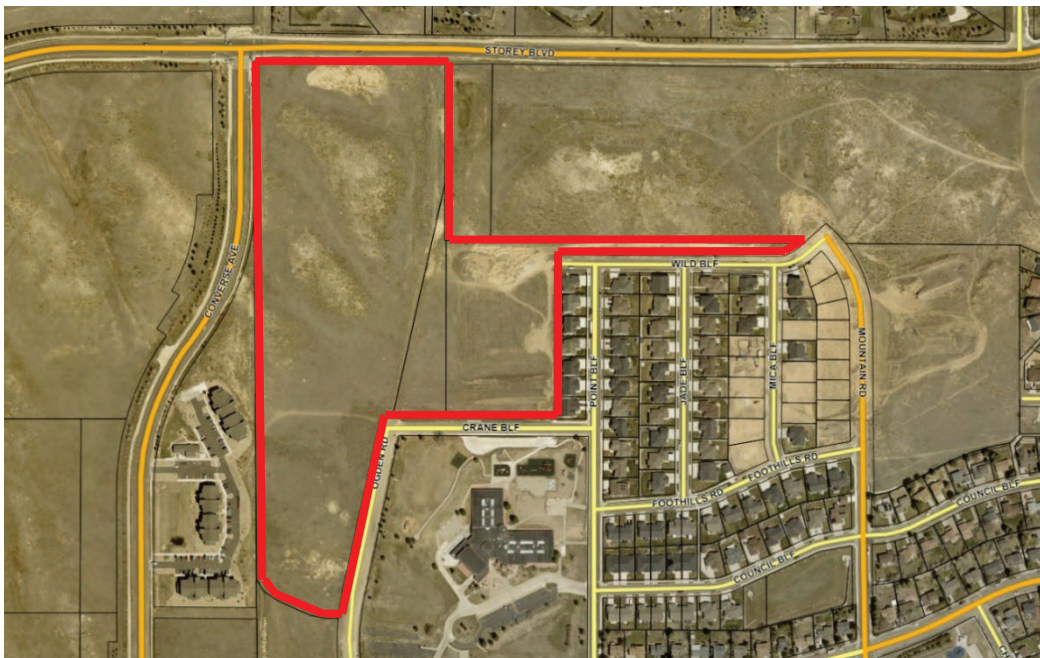
APPLICANT: Randy Guill

OWNER: Horizon Development, LLC

ZONING: County A-1 and County LR

PURPOSE: A plat creating one commercial lot, two lots for future residential development and one remainder lot.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Bluffs, 12th Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body with staff conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for 29.61 acres of land. The subject property is unplatted, vacant land, which is concurrently being annexed to the City.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	A-1 (County Agriculture) and LR (Low-density Residential)	Vacant
North	Urban Residential	AR (Agricultural Residential)	Vacant / Residential
South	Urban Residential / Public	P (Public)	School
East	Urban Residential	MR (Medium-density Residential)	Residential
West	Mixed-use Residential	NR-3 (Neighborhood Residential – High density)	Multi-family / Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities. The future land use map within PlanCheyenne identifies this area as developing with residential uses. The applicant has requested a future land use amendment for Lot 1, Block 1 to become Community Business. The plat provides larger lots than you would typically see for residential development unless used for multi-family or to be replatted at a later date. The plat does propose a commercial lot at a size that you would generally see.

The application **complies** with this review criterion.

- 2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed plat divides the land into three large parcels and a small remainder parcel. Two of the large parcels are proposed to be for residential development and may be replatted in the future. The plat does connect Ogden Road to Storey Blvd. to the north and also proposes connecting Wild Bluff to Converse to the west.

The application **complies** with this review criterion.

- 3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees.

Land Acquisition Fee	\$8,540 (\$350 per acre)
Infrastructure Fee	\$8,540 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$17,080.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee	\$400 per dwelling unit
Commercial Enhancement Fee	\$1,100 per acre

Transportation Network (4.3):

The applicant proposes extending Wild Bluff to Converse and Ogden to Storey. These are major road connections that we would expect to happen with the proposed plat. Further road networks could be proposed with the replatting of Lot 1, Block 2 and Lot 1, Block 3. There is a sliver of land that is between proposed Wild Bluff and Converse Avenue right-of-way. The applicant will need to acquire an easement from the adjacent property owner prior to signing of the plat to make sure the connection will happen.

Open Space (4.4):

The applicant has requested that open space be addressed at a later date. The reasons they gave are as follows, Lot 1, Block 1 will have a site plan which will then address the open space requirement, Lot 1, Block 2 and Lot 1, Block 3 will either be replatted in the future or they too will have site plans. Staff is satisfied with the applicants request as open space requirements will be required either with a site plan or when a replat is submitted.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any commercial building or residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion, with conditions.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage study was submitted and reviewed. There were no concerns with the study provided.

Traffic:

A traffic study was submitted and reviewed. There is some follow-up information requested.

The application **complies** with this review criterion, with conditions.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

This plat is proposing three buildable lots. Lot 1, Block 1 is proposed to be zone for commercial and the proposed lot size would be a buildable lot for that zone district. Lot 1, Block 2 and Lot 1, Block 3 are for future residential development. They could be used for multi-family at the proposed size if they were to get conditional use approval or they could be replatted into single-family lots at a later date.

All lots proposed for development are buildable lots in this zone district.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

Tract A is proposed to be a non-buildable lot. Note #5 on the plat indicates that it would be replatted in the future.

The application **complies** with this review criterion.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat will not create any undue influence on existing or potential development. The plat proposes two additional major street connections and three buildable lots. Two of the lots are proposed for future residential development which is similar to what is in the area as well.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Tract A is proposed to be a non-buildable lot. Note #5 on the plat indicates that it would be replatted in the future.

The application **complies** with this review criterion.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

- 12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Through the review process and application of the Preliminary Plat, Staff recommends minor corrections as conditions to the plat. These corrections should be resolved prior to final plat approval / signing of the mylars.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections (corrected with revised submittal).
2. Some traffic concerns and road concerns (Partially corrected with revised submittal).

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

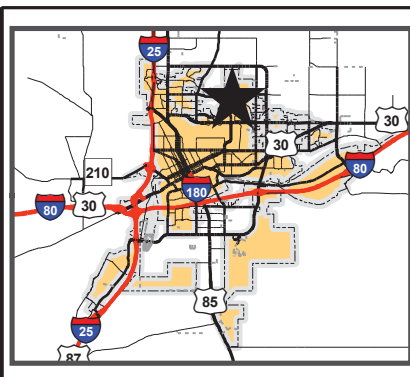
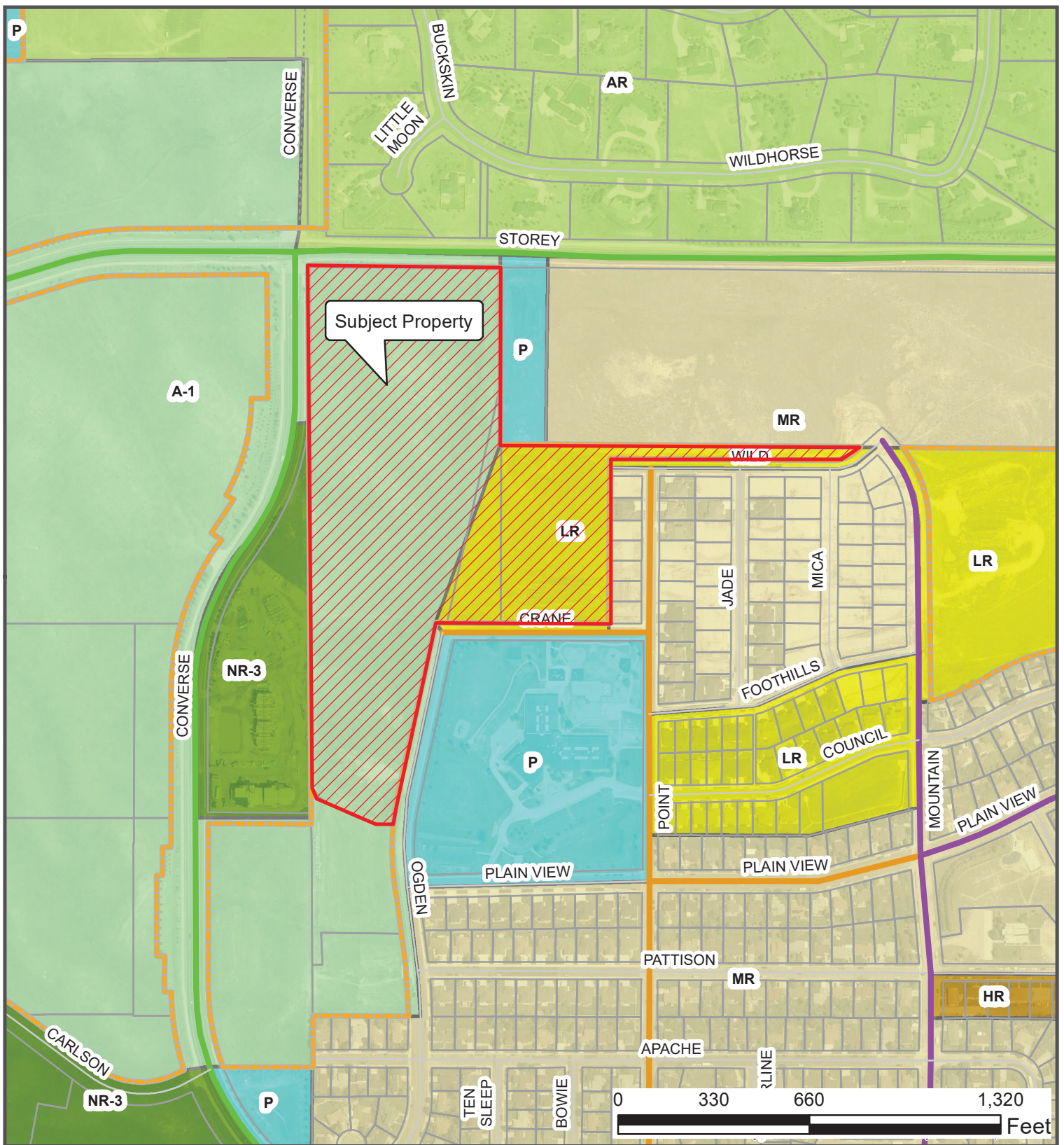
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

1. Prior to Governing Body approval:
 - a. Updated traffic information be provided and approved by the Engineering Department.
2. Prior to Mylars being signed:
 - a. An easement across Townsend Place Apartments LP be recorded to allow Wild Bluff to connect into Converse Avenue.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

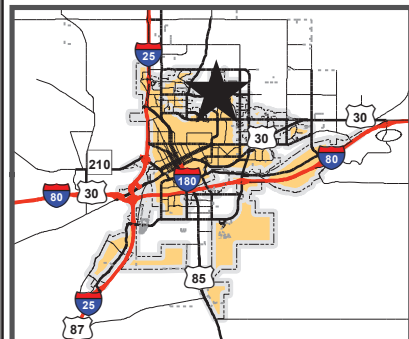
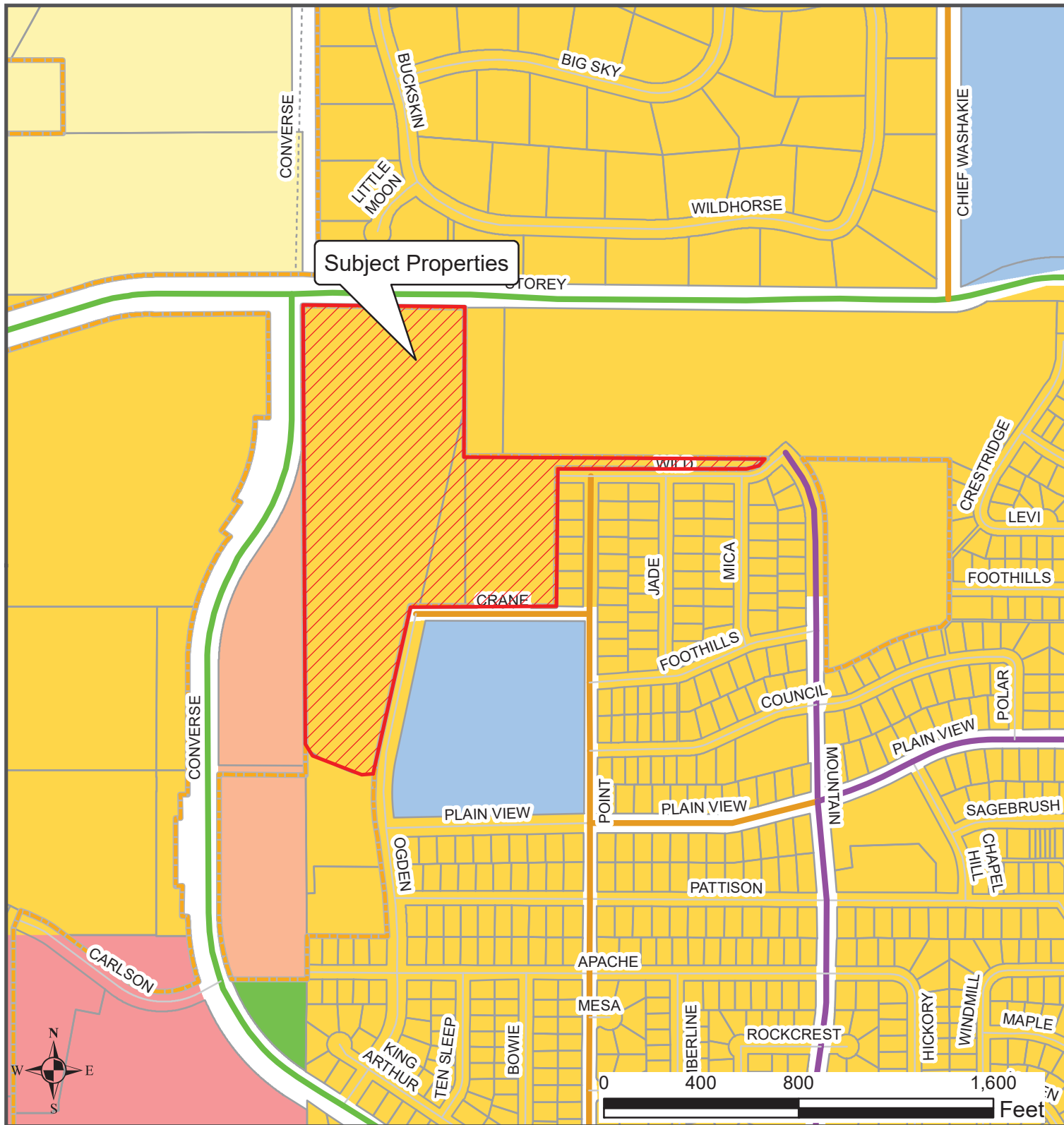


Attachment 1: Zoning Map PUDC-23-183

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-23-183

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

12/26/2023

PUDC-23-183

Plat - Expedited

Status: Active

Submitted On: 11/14/2023

Primary Location

0

Owner

Applicant

Randy Guill

307-920-8408

randy@edwardsdevelopment.com

 506 Shoshoni Street
Cheyenne, Wyoming
82009

Application Information

This application has a deadline. The deadline is typically the third Wednesday of the month (about 47 days prior to the anticipated Planning Commission Meeting).
Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*

**Written Statement***

The Bluffs, 12th Filing is the continuation of development to improve the community in this area. Road networking will be added to improve access which is a much needed addition. The mapping to create tracts for future development, as well as annexation of much or the remaining area. Zoning will be upgraded to benefit the neighborhoods housing needs as well as a tract zoned for community business. A multi-faceted development giving the community more options to grow.

Project Name*

The Bluffs

Plat Title*

The Bluffs, 12th Filing

Current Subdivision* 

Unplatted

Project area (acres)*

29.61

Proposed Lots* 

4

Pre-application Meeting Date

11/01/2023

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting  actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.*

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Randy Dale Guill

Nov 14, 2023

